



Guidelines for the preparation of reports by Member States  
on the application of the 1960 Convention and Recommendation  
against Discrimination in Education

## **Preparation of the 11th Consultation**

### **Combating discrimination in education**

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

## **GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION**

### **1. Introduction**

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

### **2. Scope of the Consultation**

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**<sup>1</sup> (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**<sup>2</sup>, which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**<sup>3</sup>, and the **Report on the 2022 Transforming Education Summit**<sup>4</sup> which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education<sup>5</sup> and the Tashkent Declaration on Early Childhood Care and Education.<sup>6</sup>

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

### 3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State

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<sup>1</sup> <https://www.unesco.org/en/right-education/evolving>

<sup>2</sup> <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

<sup>3</sup> [https://www.un.org/sites/un2.un.org/files/2022/09/sq\\_vision\\_statement\\_on\\_transforming\\_education.pdf](https://www.un.org/sites/un2.un.org/files/2022/09/sq_vision_statement_on_transforming_education.pdf)

<sup>4</sup> [https://www.un.org/sites/un2.un.org/files/report\\_on\\_the\\_2022\\_transforming\\_education\\_summit.pdf](https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf)

<sup>5</sup> [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

<sup>6</sup> [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

#### 4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**<sup>7</sup> in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**<sup>8</sup>, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database<sup>9</sup>. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

#### 5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).

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<sup>7</sup> <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

<sup>8</sup> <https://en.unesco.org/education/girls-women-rights>

<sup>9</sup> [UIS Statistics \(unesco.org\)](https://uis.unesco.org/)

- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

**GENERAL INFORMATION:**

Country name: Estonia

Organization or entity responsible for the preparation of the report: Ministry of Education and Research of Estonia; Estonian National Commission for Unesco

Name of contact person: Renate Gross, Hanna-Liis Kaarlõp

Email and telephone number of contact person: [renate.gross@hm.ee](mailto:renate.gross@hm.ee), +3727350676; [hanna-liis.kaarlop@kul.ee](mailto:hanna-liis.kaarlop@kul.ee), +37255620921

**I. Ratification and applicability of the Convention against Discrimination in Education<sup>10</sup>**

- Is your country a State Party to the Convention?

☐ Yes

☐ No: Does your country plan to ratify this instrument?

☒ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☒ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

☐ Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Estonia fully complies with the Charter of Fundamental Rights of the European Union. According to Article 21 of the Charter, "Non-discrimination – forbids discrimination on grounds of sex, race, colour, ethnic or social origin, genetic features, language, religion or other belief, political opinion, membership of a national minority, property, birth, disability, age or sexual orientation."

Moreover, the ratification process has been stopped at the Parliament of Estonia twice: in 2012 and 2015 - both times due to lack of consensus.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes

☒ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?<sup>11</sup>

☐ Yes

☒ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes

☒ No

- Please cite the case law and jurisprudence.

*Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.*

According to the Constitution of the Republic of Estonia Article 37, everyone has the right to education. Education for school-age children is compulsory to the extent specified by the law, and is free of charge in general schools established by the national government and by local authorities. In order to make education accessible, the national government and local authorities maintain a requisite number of educational institutions. Other educational institutions, including private schools, may also be established and maintained pursuant to the law. Parents have the deciding say in the choice of education for their children. Everyone has the right to be taught in Estonian. The language of teaching in national minority educational institutions is chosen by the educational institution. Article 12 provides that everyone is equal before the law. No one may be discriminated against on the basis of nationality, race, colour, sex, language, origin, religion, political or other views, property or social status, or on other grounds. Incitement to ethnic, racial, religious or political hatred, violence or discrimination is prohibited and punishable by law. Incitement to hatred and violence between social classes or to discrimination against a social class is also prohibited and punishable by law.

<https://www.riigiteataja.ee/en/eli/ee/530122020003/consolide>

## **II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)**

### **1. Towards an inclusive non-discriminatory education system**

<sup>11</sup>

Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

*For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.*

*It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.<sup>12</sup>*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

**Legislation:**

<https://www.riigiteataja.ee/en/eli/505012024003/consolide>

<https://www.riigiteataja.ee/en/eli/524042014002/consolide>

## 1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation<sup>13</sup>, and ensure equal access to all levels and types of education (please tick all that apply):

*For reference: This notably is covered under SDG target 4.1 and partly target 4.b<sup>14</sup>*

- ☐ Legal texts<sup>15</sup> prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

<sup>12</sup> Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

<sup>13</sup> See: Article/Paragraph 1(1).

<sup>14</sup> Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

<sup>15</sup> Constitution, laws, decrees, regulations, circulars, etc.



- Please indicate the relevant legal provisions:

Republic of Estonia Education Act:

<https://www.riigiteataja.ee/en/eli/524042014002/consolide/current>

Preschool Child Care Institutions Act

<https://www.riigiteataja.ee/akt/126042024003>

Vocational Educational Institutions Act

<https://www.riigiteataja.ee/en/eli/510052024002/consolide>

Higher Education Act

<https://www.riigiteataja.ee/en/eli/514092023001/consolide>

Adult Education Act

<https://www.riigiteataja.ee/en/eli/ee/529062015007/consolide/current>

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

According to subsection 9 (1) of the Constitution of the Republic of Estonia, all persons staying in Estonia are equal before the law, and Article 12 of the Constitution provides for prohibition on discrimination. With the Equal Treatment Act (2008) Estonia has transposed into national law EU Directives 2000/78/EC and 2000/43/EC, establishing a general framework of equal treatment. The objective of the Act is to ensure the protection of persons against discrimination on grounds of nationality (ethnic origin), race, colour, religion or other beliefs, age, disability or sexual orientation. The Act does not concern racial discrimination, which lies within the scope of application of the Gender Equality Act. Prohibitions on discrimination and duty to promote equal treatment are included in the Employment Contracts Act (§ 3) and in the Public Service Act (§ 13). Also the Penal Code enshrines provisions related to discrimination, setting out criminal liability for certain violations. The most important relevant provisions of the Code deal with the prohibition on incitement of hatred and on violation of equality.

Additionally, according to the Education Act subsection 2, the fundamental principles of education are based on the recognition of universal and civic values, freedom of the individual, religion and conscience. The objectives of education are to:

1) create favourable conditions for the development of the individual, the family and the Estonian nation, also for ethnic minorities, and economic,

political and cultural life in Estonian society and also nature conservation, within the context of the global economy and global culture;  
2) shape individuals who respect and abide by the law;  
3) create opportunities for everyone to engage in lifelong learning.

The Adult Education Act regulates the learner's equal right to study leave.

□ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

Civil society organisations also play an important role in preventing discrimination. One of the best known such initiatives is KiVa.  
<https://kiusamisvaba.ee/>

In adult education, the focus of activities is on adults with lower competitiveness: with a low level of education, without professional education, equally men and women. We also pay attention to the elderly, e.g. the development of their digital skills.

□ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

According to the Basic Schools and Upper Secondary Schools Act, the fundamental values of general education schools consist of “The values arising from the ethical principles specified in the Constitution of the Republic of Estonia, the Universal Declaration of Human Rights, the Convention on the

Rights of the Child and the fundamental documents of the European Union are considered important,” (§ 3., point 2). “Upon organisation of studies, the state, owners of schools and schools adhere to the following principles: 1) general education of good quality adheres to the principles of inclusive education and is equally available to all persons regardless of their social and economic background, nationality, gender, place of residence or special educational needs; 2) there are no curricula-based impediments to the movement of students from one stage of study, form of study or level of education to another,” (§ 6, point 1 and 2).

<https://www.riigiteataja.ee/akt/126042024009>

National upper secondary vocational education and training curricula for 15 different curriculum groups addresses the ability to perceive and value one’s association with one’s own cultural heritage and contemporary cultural events and with those of other countries’ and groups;

The common general studies of all national curricula of vocational secondary education include, for example, the following learning outcomes in social subjects modules:

- has an understanding of the occurring phenomena, processes and conflicts in society and their connections and mutual influence
- understands the importance of cultural diversity and democracy and its protection and the necessity of sustainable development by accepting differences
- appreciates universal human values such as freedom, human dignity, equality, honesty, caring, tolerance, sense of responsibility, justice, patriotism and respect for oneself, others and the environment.

According to the Equal Treatment Act, § 2: (1) “Discrimination of persons on grounds of nationality (ethnic origin), race or colour is prohibited upon:

3) access to vocational guidance, vocational training, advanced vocational training and retraining, practical work experience;

6) education;”

whereas § 2: (2) determines that “Discrimination of persons on grounds of religion or other beliefs, age, disability or sexual orientation is prohibited upon:

3) access to vocational guidance, vocational training, advanced vocational training and retraining, practical work experience;”

§13 of the Equal Treatment Act states that “Educational and research institutions and other entities and persons organising training shall, upon determination of the content of studies and organisation of studies, take

account of the need to promote the principle of equal treatment.”  
<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/507032022003/consolide>

The following paragraph is valid for all levels of education, including: pre-primary education (including early learning and care); primary education; secondary education; technical and vocational education and training; higher education; adult education and alternative learning.

According to the Gender Equality Act § 10. “Educational and research institutions and institutions engaged in the organisation of training shall ensure equal treatment of men and women in vocational guidance, acquisition of education, professional and vocational development and re-training. The curricula, study materials used and research conducted shall facilitate abolishment of the unequal treatment of men and women and promote equality.”

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/505012024003/consolide>

□ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

In general education, free school meals are provided in both primary and secondary schools, and school buses are provided based on needs.

In adult education, we offer programs aimed at specific target groups: people with a low level of education, people without professional skills, including trying to take into account equality between regions.

According to the Regulation of the Government of the Republic ‘Conditions of and procedure for the creation of opportunities for language and culture teaching’:

### § 3. Establishment of language and culture teaching

(1) The school organises at least two lessons of language and cultural education per week as an elective subject for pupils acquiring basic education if at least 10 parents (guardians) of pupils with the same native language have submitted a written application for this to the head of the school.

(2) If fewer than 10 applications have been submitted for the organisation of teaching of the same language and culture, the school decides on the provision of language and culture teaching in cooperation with the rural municipality or city government.

<https://www.riigiteataja.ee/akt/111092012007?leiaKehtiv>

## 1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

**General measures:**

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Legislation provides for inclusive education for all</li> <li><input checked="" type="checkbox"/> Policy measures aim to enhance inclusion in education for all</li> <li><input checked="" type="checkbox"/> Teachers are trained on inclusive education<sup>16</sup> and to value diversity</li> <li><input checked="" type="checkbox"/> Initiatives to address discrimination and promote cultural diversity and mutual acceptance</li> <li><input type="checkbox"/> Other:</li> </ul> | <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Multiple and flexible learning pathways<sup>17</sup> are provided for</li> <li><input checked="" type="checkbox"/> Curricula and teaching methods are inclusive in design<sup>18</sup></li> <li><input checked="" type="checkbox"/> Multilingual and intercultural education is supported</li> </ul> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

According to the Constitution of the Republic of Estonia Article 37 everyone has the right to education. Education for school-age children is compulsory to the extent specified by the law and is free of charge in general schools established by the national government and by local authorities. In order to make education accessible, the national government and local authorities maintain a requisite number of educational institutions. Other educational institutions, including private schools, may also be established and maintained pursuant to the law. Parents have the deciding say in the choice of education for their children. Everyone has the right to be taught in Estonian. The language of teaching in national minority educational institutions is chosen by the educational institution. Article 12 provides that everyone is equal before the law. No one may be discriminated against on the basis of nationality, race, colour, sex, language, origin, religion, political or other views, property or social status, or on other grounds. Incitement to ethnic, racial, religious or political hatred, violence or discrimination is prohibited and punishable by law. Incitement to hatred and violence between social classes or to discrimination against a social class is also prohibited and punishable by law.

<https://www.riigiteataja.ee/en/eli/ee/530122020003/consolide>

<sup>16</sup> Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

<sup>17</sup> Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

<sup>18</sup> In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Education Strategy 2021-2035 adopted in 2021 guides the most important developments in the area of education

[https://www.hm.ee/sites/default/files/documents/2022-10/haridusvaldkonna\\_arengukava\\_2035\\_kinnitaud\\_vv\\_eng\\_0.pdf](https://www.hm.ee/sites/default/files/documents/2022-10/haridusvaldkonna_arengukava_2035_kinnitaud_vv_eng_0.pdf)

Its overall objective is to equip the population of Estonia with the knowledge, skills and attitudes that prepare people to fulfil their potential in personal, occupational and social life and contribute to promoting the quality of life in Estonia as well as global sustainable development. Among basic values of the strategy are gender equality, openness, tolerance and sustainable development.

Education Strategy is the basis on which the government will make its decisions for educational funding and for supporting the achievement of necessary changes. Its strategic goals are: 1. Learning opportunities are diverse and accessible and the education system enables smooth transitions between levels and types of education; 2. Estonia has competent and motivated teachers and heads of schools, a diverse learning environment and a learner centred approach to learning and teaching; 3. Learning options are responsive to the development needs of society and the labour market.

Other initiatives to put the principles in practice are following:

Cohesive Estonia Strategy 2030

[https://www.kul.ee/sites/default/files/documents/2022-02/cohesive\\_estonia\\_strategy.pdf](https://www.kul.ee/sites/default/files/documents/2022-02/cohesive_estonia_strategy.pdf)

Its general objective is to assure that Estonia is a cohesive and inclusive society, among its strategic goals is stressed that Estonian society is cohesive and stable where people from different linguistic and cultural backgrounds carry the Estonian identity, participate actively in social life, share democratic values and a common cultural, information and communication space, and feel a sense of unity. Everyone has equal opportunities for successful independent coping and well-being for all people living in Estonia.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

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### **Other relevant general measures, including gender equality**

- |                                                                                                      |                                                                                                                                                               |
|------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for gender equality in education            | <input checked="" type="checkbox"/> All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| <input checked="" type="checkbox"/> Policy measures aim to enhance gender equality                   | <input type="checkbox"/> Re-entry programmes for young mothers are provided for                                                                               |
| <input type="checkbox"/> Gender-responsive education sector planning is undertaken                   | <input type="checkbox"/> Ensuring safe and adequate gender-sensitive sanitation facilities <sup>20</sup>                                                      |
| <input type="checkbox"/> Providing positive or affirmative action measures                           | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>21</sup> and bias                                                               |
| <input type="checkbox"/> Providing financial incentives and fellowships                              | <input checked="" type="checkbox"/> Ensuring gender parity in science, technology, engineering and mathematics (STEM)                                         |
| <input checked="" type="checkbox"/> Teachers are trained (initial and in-service) on gender equality | <input type="checkbox"/> Ensuring gender parity in technical and vocational training education and training (TVET)                                            |
| <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation <sup>19</sup>      |                                                                                                                                                               |
| <input type="checkbox"/> Other:                                                                      |                                                                                                                                                               |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

According to the Gender Equality Act § 10. “Educational and research institutions and institutions engaged in the organisation of training shall ensure equal treatment of men and women in vocational guidance, acquisition of education, professional and vocational development and re-training. The curricula, study materials used and research conducted shall facilitate abolishment of the unequal treatment of men and women and promote equality.”  
<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/505012024003/consolide>

Working groups on the national level to deal with gender equality in education are following: STEM working group at the Ministry of Education and Research; Engineering Academy in HE and VET (with a programme for 2023-2029).

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Boys and men are overrepresented among those with lower educational achievement; tertiary education attainment gap (more girls/women).

<sup>19</sup> ‘Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

<sup>20</sup> ‘Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ (UNGEI blog post, Gender-sensitive sanitation, 2018)

<sup>21</sup> ‘Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong’ (Cambridge Dictionary).

- Does the legal minimum age for marriage conform to international standards (18 years) <sup>22</sup>:

*Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.*

☒ Yes

☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According to Estonian Family Law Act:

(2) Only adults may get married.

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/515092023004/consolide>

The age of consent in Estonia is 16, as specified by Section 145 (1) of the Criminal Code of Republic of Estonia: Engaging in sexual intercourse or any other acts of sexual nature with a person under sixteen years of age by an adult person, unless the age difference between the adult person and the person between fourteen and sixteen years of age is not more than five years, is punishable by up to five years' imprisonment.

<https://www.riigiteataja.ee/akt/122032024002>

### **National minorities:**

*For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.*

- ☒ Legislation provides for the right to education of national minorities
- ☒ Policy measures aim to enhance the right to education of national minorities
- ☒ Policy elaboration includes consultations with local communities
- ☒ The right to carry out their own educational activities is legally guaranteed for national minorities

- ☒ Teachers are trained on intercultural education
- ☒ Teachers are trained to combat stigmatisation<sup>24</sup>
- ☒ Multilingual and intercultural education are supported
- ☐ Native language instruction is ensured for national minorities

<sup>22</sup>

Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

<sup>24</sup>

Supra note 15.



- |                                                                                                                                   |                                                                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Educational standards are established for educational institutions run by national minorities | <input checked="" type="checkbox"/> Adapting curricula and teaching and learning methods to their needs for national minorities |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided for national minorities                  | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>25</sup> and bias                                 |
| <input checked="" type="checkbox"/> Financial incentives and fellowships are provided for national minorities                     |                                                                                                                                 |
| <input type="checkbox"/> Other <sup>23</sup> :                                                                                    |                                                                                                                                 |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Studies are conducted in Estonian preschool childcare institutions, general education schools and vocational schools under uniform national curricula, on the basis of which schools compile their own curricula. The values deemed important in the national curricula derive from the ethical principles specified in the Constitution of the Republic of Estonia, the Universal Declaration of Human Rights, the Convention on the Rights of the Child and the basic documents of the European Union. General human values (honesty, compassion, respect for life, justice, human dignity, respect for self and others) are enshrined as core values, as are social values (liberty, democracy, respect for mother tongue and culture, patriotism, cultural diversity, tolerance, environmental sustainability, rule of law, solidarity, responsibility and gender equality). As the education system is based on the constitution and constitutional values of Estonia education shall be directed to the full development of the student but also to the socialisation and shaping a peaceful, inclusive, open, tolerant and democratic society.

In addition, the general competencies of the state curricula for primary and secondary education address similar aspects. General competences are cross-curricular competences and topics that are important for personal and civic development. They are developed in all subjects and in extracurricular activities. The development of general competencies is monitored and guided by teachers in cooperation with each other and in cooperation between the school and the home. (Excerpt of the national basic school curriculum, section 4, subsection 2). Among the 8 general competencies fostered, 2 are most strongly related with the aforementioned elements:

- 1) cultural and value competence - the ability to evaluate human relations and activities from the point of view of generally applicable moral norms; to perceive and value one's connection with other people, society, nature, one's own and other countries' and peoples' cultural heritage and contemporary cultural events; to value creativity and shape the esthetic

<sup>23</sup> Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

<sup>25</sup> Supra note 16.

sense; to value universal and societal values, to value human, cultural and natural diversity; value awareness.

- 2) social and civic competence - the ability to fulfill oneself; to act as an active, informed, helpful and responsible citizen and to support the democratic development of society; know and follow societal values and moral principles; respect the rules and social diversity of different environments, including social environments and diversity, human rights, religions and nationalities; to cooperate with other people in different situations; accept the differences between people and their values and take them into account when communicating; the ability to understand global problems, to take joint responsibility for solving them; value and adhere to the principles of sustainable development; to feel like a member of society capable of dialogue in the context of Estonia, Europe and the whole world

(Excerpts of the national basic school curriculum, section 4, subsection 3, clauses 1-2.)

#### Ongoing transition to the Estonian language of instruction

Since the Second World War, the Estonian school system has been divided into schools with Estonian as the main language of instruction and schools with Russian as the main language of instruction. It has been observed that students in schools with Russian as the main language of instruction underperform Estonian students in both national exams and international tests, such as PISA, TIMSS, and ICCS. To tackle long-standing educational inequality and gap in academic achievement compared to Estonian-language schools, the government has decided to unify the Estonian education system by 2030. The reform aims to provide high-quality education in Estonian to all students, from primary to higher education. The transition to official-language education supports the formation of the Estonian state identity, increases the cohesion of society and reduces both educational and socio-economic isolation.

The current transition to Estonian-language education is set to begin in the kindergartens and in grade 1 and grade 4 from the 2024/2025 school year, with the aim of completing the process by 2030. The latest reforms constitute a final step in a long and gradual process that was set in motion in 1991 and shall be completed by 2030. After regaining independence on 20 August 1991, Estonia initiated transition from a totalitarian regime to a democratic system based on the rule of law and respect for human rights. According to the article 6 of the Constitution, the official language of Estonia is Estonian. Article 36 paragraph 4 of the Constitution stipulates that everyone has the right to be taught in Estonian. It further underlines that the language of instruction in national minority educational institutions shall be chosen by the educational institution. The Education Act adopted in 1992 introduced the principles for organising the education system. Under section 4 (2) of the act, the

state and local government were entrusted with the obligation to ensure that opportunities exist for the acquisition of education in Estonian at all levels of education in public educational institutions and universities. The actual transition to Estonian language instruction in Russian language schools of the public education system was envisaged as a gradual process. In the Basic and Upper Secondary School Act of 1993 it was decided that the transition in public (state and municipal) upper secondary school was to take place from 1993 to 2000. In 1997 that act was amended and the transition was to begin no later than 2007-2008 academic year. Starting from 1997 every year one additional subject was to be taught in Estonian so that by the 2011-2012 academic year all public Russian medium upper secondary schools were to have at least 60% of studies in Estonian. By 1 September 2013 the transition to the Estonian language of instruction was completed, and all public upper secondary level Russian language schools, which had not yet done so, had introduced Estonian as the language of instruction in at least 60% of the studies. The transition has been a step-by-step gradual and longitudinal transition process in the public education system. All interested minority groups and individuals have been able to participate in the process over the years. The cultural and language-based needs arising from the ethnic origin of the school's student body are regulated by the Regulation of the Government "Conditions and procedure for creating opportunities for language and cultural studies", according to it all students whose mother tongue is different from the language of instruction have the right to receive 2 lessons a week of learning their mother tongue and culture. As an alternative to language study groups, national minorities also organise language and cultural studies at hobby schools which receive systematic support from the Ministry of Education and Research.

The primary objective of the transition to official-language education is to provide all children living in Estonia with high-quality education in the official language, regardless of their native language. An entirely official-language educational environment also ensures better opportunities for further education, success in the labour market, and people's participation in the common Estonian information and value space.

The current changes are therefore based on long-term experience and constitute a part of the gradual transition process of the national education system. Over the years, all interested minority groups and individuals have been able to participate in various stages of this process, from the level of policy making and implementation to specific decisions at the level of government and municipalities, including in challenging individual acts of national authorities in national and international courts. Therefore, over the decades, the education reform has provided minorities with ample opportunity to engage in dialogue with municipalities and state authorities and to express their viewpoints and concerns as well as to challenge the policies and measures of the state and municipalities.

By gradually increasing the share of the state language as the language of instruction in the national education system, Estonia has established a sufficient transition period for its implementation. This allows educational institutions, teachers, pupils and their parents to adapt and implement the changes appropriately in practice, thereby strengthening the overall availability, accessibility and adaptability of the education system and curriculum. Persons belonging to national minorities retain the right to preserve and develop their identity and culture.

Legislation setting out the transition to education in the official language does not affect private education and is in line with Article 13(1) of the Council of Europe Framework Convention (*Within the framework of their education systems, the Parties shall recognise that persons belonging to a national minority have the right to set up and to manage their own private educational and training establishments*). In Estonia, private schools guarantee education in a language other than Estonian, and the owner of the private school is free to choose the language of instruction. Therefore, private schools can decide whether to undertake the transition or not, but they must follow national curricula and ensure that their students achieve the necessary learning outcomes, including Estonian language skills, that will ensure access to the next level of education. Private education with Russian as the language of instruction is available in Estonia and there are no obstacles to opening new private schools. Private schools enjoy partial public funding.  
<https://www.riigiteataja.ee/en/eli/503062019009/consolide>

The state provides operating grants to support the activities of national cultural societies' hobby schools that are related to the preservation and development of the language and culture of national minorities. In 2022, the Ministry of Education and Research supported the learning of the Arabic, Armenian, Azerbaijani, Belarusian, Finnish, Georgian, Kabardian, Korean, Mari, Roma, Russian, Tatar, Ukrainian and Uzbek languages and cultures. In 2023, the Ministry of Education and Research granted the full amount of the requested grant to 32 Estonian hobby schools. In addition, the state supports the importance of cultural and information spheres, while also being aware of the cultural activities and Russian-language outputs of Estonian media.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

There is an ongoing concern for the economic and social well-being of people of other nationalities, though it remains secondary to the well-being of Estonians. The primary obstacle to the integration process, intensified by the war in Ukraine, is the enduring mistrust between Estonians and the Russian-speaking community. This mistrust is reflected in the consistently low trust the Russian-speaking population has in the Estonian state and its institutions.

### **Indigenous people:**

- |                                                                                                                              |                                                                                                                    |
|------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Legislation provides for the right to education of indigenous people                                | <input type="checkbox"/> Financial incentives and fellowships are provided for indigenous people                   |
| <input type="checkbox"/> Policy measures aim to enhance the right to education of indigenous people                          | <input type="checkbox"/> Teachers are trained on intercultural education                                           |
| <input type="checkbox"/> Policy elaboration includes consultations with local communities                                    | <input type="checkbox"/> Teachers are trained to combat stigmatisation <sup>26</sup>                               |
| <input type="checkbox"/> The right to carry out their own educational activities is legally guaranteed for indigenous people | <input type="checkbox"/> Multilingual and intercultural education are supported                                    |
| <input type="checkbox"/> Educational standards are established for educational institutions run by indigenous people         | <input type="checkbox"/> Native language instruction is ensured                                                    |
| <input type="checkbox"/> Positive or affirmative action measures are provided for indigenous people                          | <input type="checkbox"/> Adapting curricula and teaching and learning methods to their needs for indigenous people |
| <input type="checkbox"/> Other:                                                                                              | <input type="checkbox"/> Curricula are rid of all stereotypes <sup>27</sup> and bias                               |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

This aspect is not applicable to our country's context as Estonia does not have indigenous people according to the UNESCO definition.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

N/A

### **People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations<sup>28</sup>:**

- |                                                                                             |                                                                                                        |
|---------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for their right to education       | <input checked="" type="checkbox"/> Financial incentives and fellowships are provided for              |
| <input checked="" type="checkbox"/> Policy measures aim to enhance their right to education | <input checked="" type="checkbox"/> Auxiliary assistance is provided                                   |
| <input checked="" type="checkbox"/> Inclusion in mainstream schools is ensured              | <input checked="" type="checkbox"/> Multiple and flexible learning pathways <sup>31</sup> are provided |

<sup>26</sup> Supra note 15.

<sup>27</sup> Supra note 16.

<sup>28</sup> 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

<sup>31</sup> Supra note 13

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Positive or affirmative action measures are provided for</li> <li><input checked="" type="checkbox"/> All administrative barriers to access education are removed</li> <li><input checked="" type="checkbox"/> Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers<sup>29</sup> are provided for</li> <li><input checked="" type="checkbox"/> Teachers are specifically trained to ensure their inclusion</li> <li><input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation<sup>30</sup></li> <li><input type="checkbox"/> Other:</li> </ul> | <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Curricula are rid of all stereotypes<sup>32</sup> and bias</li> <li><input checked="" type="checkbox"/> Accelerated learning programmes are provided</li> <li><input checked="" type="checkbox"/> Non-formal and/or alternative education programmes are provided</li> <li><input checked="" type="checkbox"/> Language classes to newcomers are provided for</li> <li><input checked="" type="checkbox"/> Multilingualism and intercultural education are encouraged</li> </ul> |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Pursuant to the Constitution, the Preschool Child Care Institutions Act, the Basic Schools and Upper Secondary Schools Act, the Private Schools Act, the Vocational Educational Institutions Act, and the Higher Education Act, Article 38 of the Convention on the Rights of the Child, the Temporary Protection Directive for Ukrainian refugees, all persons legally staying in Estonia and all beneficiaries of international protection or persons seeking international protection have the right to acquire education under the conditions provided for in the above Acts. Access to education is not dependent on a person's language, cultural or ethnic origin, background, or religious beliefs.

Following the Ukrainian war, approximately 4% of all students in the school system are of Ukrainian origin. Estonia has prioritized supporting children, young people, and their families in adapting to major life changes, with a particular focus on mental health.

In collaboration with the Government of Ukraine and the Ukrainian community in Estonia, schools have been able to utilize free digital teaching materials in Ukrainian and have provided support for distance learning, using the Ukrainian national curricula. Kindergartens, general education schools, and vocational training institutions have hired Ukrainian teachers and support specialists as teaching assistants.

There is no national requirement to hold an open competition for the position of teaching assistant, nor are there centrally established qualification requirements. This

<sup>29</sup> While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

<sup>30</sup> Supra note 15.

<sup>32</sup> Supra note 16.

flexibility facilitates the recruitment of Ukrainian specialists and allows for the possibility of concluding an open-ended employment contract if desired. Furthermore, all unaccompanied children have received the necessary care, supervision, and access to formal education.

- Have specific measures been adopted for climate displaced persons?

- ☐ Yes  
☒ No

- Please elaborate:

N/A

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Convincing the refugee families to enrol the school-aged children into the local education system.

### **People with disabilities:**

- |                                                                                             |                                                                                                  |
|---------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for their right to education       | <input checked="" type="checkbox"/> Mainstream teachers are specifically trained on disabilities |
| <input checked="" type="checkbox"/> Policy measures aim to enhance their right to education | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation <sup>33</sup>  |
| <input checked="" type="checkbox"/> Inclusion in mainstream schools is ensured              | <input checked="" type="checkbox"/> Auxiliary assistance is provided                             |
| <input type="checkbox"/> Special schools are used as resource centers to inclusive schools  | <input checked="" type="checkbox"/> Curricula and teaching and learning methods are adapted      |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided    | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes <sup>34</sup> and bias  |
| <input checked="" type="checkbox"/> Financial incentives and fellowships are provided       | <input checked="" type="checkbox"/> Education infrastructure and learning materials are adapted  |
| <input checked="" type="checkbox"/> Other                                                   |                                                                                                  |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

For the implementation of the Estonian Education Strategy and its strategic goal *Estonia has competent and motivated teachers and heads of schools, a diverse learning environment and a learner centred approach to learning and teaching* an intervention

<sup>33</sup> Supra note 15.

<sup>34</sup> Supra note 16.

for the educational support services has been adopted (see “Hariduse tugiteenused” - [https://rajaleidja.ee/wp-content/uploads/2024/01/Lisa\\_Sekkumise-%E2%80%9EHariduse-tugiteenused-elluviimiseks-toetuse-andmise-tingimused\\_0.pdf](https://rajaleidja.ee/wp-content/uploads/2024/01/Lisa_Sekkumise-%E2%80%9EHariduse-tugiteenused-elluviimiseks-toetuse-andmise-tingimused_0.pdf)). As children and youth have different abilities, needs and interests, many of them need counselling and support at different stages of their lives in order to unlock their potential and, in many instances, overcome challenges in their education path. There is also a growing number of children in kindergartens and schools who need help from support specialists to a various extent in order to achieve the goals of the curriculum. The goal of study counselling is to better understand everyone's individual needs and provide support to students with special needs for participating in learning that corresponds to their abilities.

Counselling and support of students carried out in a timely manner decreases the number of people who cut their education path short and the number of school drop-outs and creates conditions for an increased share of students at higher levels of education.

The goal of the intervention is to ensure the uniform availability of education support services throughout the country so that all learners can maximise their full potential and participate in the learning that corresponds to their abilities and allows them to maximise their full potential, regardless of their social or economic background, nationality, gender or special needs ect;

The planned cost of the programme for the period of 2021-2027 is 29 488 659 Euros, out of which 20 642 061 Euros come from the European Social Fund (ESF) and 8 846 598 Euros from the state budget.

#### Supported Activities

Following activities will be funded under this directive:

##### 1) Provision of Educational Counseling Services

Educational counselling services are provided to preschool children, students in general education and vocational training institutions, adults working with them, and parents to support the development and education appropriate to the child/learner's abilities throughout Estonia in all counties. The service includes:

1.1 Identifying the child's/learner's behavioural and learning difficulties, development opportunities, and potential;

1.2 Counselling parents, teachers, support specialists, education officials, and other individuals related to children/learners based on the assessment and study results of the child/learner in choosing and implementing necessary educational and developmental measures, preventing and resolving learning and behavioural issues, and supporting transitions;



1.3. Providing educational recommendations as an external counselling team to support the child's/learner's development by implementing the support measures stipulated in the Basic Schools and Upper Secondary Schools Act and the Preschool Child Care Institutions Act;

1.4. Advising educational institutions on creating a safe and supportive environment for each child's/learner's development and implementing targeted and institution-wide approaches for preventing violence and supporting mental health;

1.5. Ensuring counselling for educational institutions in crisis situations.

## 2) Ensuring the Quality of Educational Counselling Services

To ensure the quality of educational counselling services:

2.1. Appropriate, reliable, and scientifically-based assessment instruments and methodologies are used; assessment and methodological tools are developed, purchased, and enhanced;

2.2. A client management system is developed, and analyses, surveys, and studies are conducted to assess user satisfaction with the services and to gather input for developing educational counselling services;

2.3. Educational counselling cases are analysed, and based on the analysis, guidance and/or methodological materials are prepared for teachers and support specialists, and proposals are made for further training and, if necessary, the development of training curricula for education sector employees;

2.4. Educational counselling service standards and external counselling team procedures are updated and kept current;

2.5. Network seminars, training sessions, peer reviews, and supervisions are conducted and organised for educational counselling specialists.

## 3) Empowerment of Local Governments for Organizing Educational Support Services

In cooperation with local governments and associations of local authorities, conditions are created to enhance the capacity of educational institution organisers to advise educational institutions on implementing inclusive school culture and learner-centred education. To ensure the development support of local governments:

3.1. Guidance materials are created for educational institutions to support students with special educational needs within general support and to implement enhanced and special support;

3.2. Regional network seminars for support specialists and peer reviews for school teams are organised;

3.3. Local governments and associations of local authorities are advised on assessing the need for integrated services across sectors and organising service provision, as well as creating and developing primary service centres;

3.4. Best practices are coordinated and shared, and regional, including social, health, and youth sector-integrated service models, are created and piloted.

A law on pre-primary education has been drafted. The draft plans to harmonise the principles and organisation of support with the regulation of the Basic and Upper Secondary Schools Act. This means that the organisation of providing support will become similar regardless of the level of education and will be based primarily on the individual needs of the learner, and not on the diagnosis or disability. The proposed change ensures greater coherence between pre-primary and primary education than before.

In cooperation with the Ministry of Social Affairs, a reform with concrete activity plan of support systems for children with special needs has been launched with the aim of eliminating duplication and fragmentation of services between different areas.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

The main challenges in the national inclusive education policy are clarifying the meaning of inclusive education among different stakeholders, ensuring compliance with the inclusive education policy at all levels of education (pre-primary, general and vocational education) and bringing the legislation into line with the principles of inclusive education in a meaningful way.

It is a challenge to prepare teachers to use inclusive classroom strategies and work to principles of inclusive pedagogy.

<https://www.european-agency.org/sites/default/files/CSM%20Country%20Report%20Estonia.pdf>

#### **Students from poor households:**

- |                                                                                                                                                   |                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Financial incentives and fellowships for school enrolment are provided                                        | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatisation |
| <input checked="" type="checkbox"/> Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | <input checked="" type="checkbox"/> Curricula are rid of all stereotypes and bias |
-

- ☒ Positive or affirmative action measures are provided
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

According to PISA 2018 and 2022 results, socio-economic background plays little role in Estonian students' learning outcomes.

In general education, free school meals are provided in both primary and secondary schools, and school buses are provided based on needs.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

## 2. Progress made with respect to implementing the right to education across all levels and forms of education

### 2.1 Early childhood care and education

*For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation<sup>35</sup> and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education<sup>36</sup>. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.*

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

<sup>35</sup> Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

<sup>36</sup> Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- |                                                                                                  |                                                                                                                                                                                                               |
|--------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Prior to pre-primary education, ECCE services are free                  | <input checked="" type="checkbox"/> ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| <input checked="" type="checkbox"/> Prior to pre-primary education, ECCE services are affordable |                                                                                                                                                                                                               |
| <input checked="" type="checkbox"/> ECCE services are accessible on a non-discriminatory basis   |                                                                                                                                                                                                               |

- Please elaborate further on the measures taken:

ECCE services are provided by local municipalities. In Estonia, fully paid parental leave is 18 months.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ☒ Pre-primary education is **not** compulsory.

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- ☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Preschool Child Care Institutions Act

<https://www.riigiteataja.ee/en/eli/512112013001/consolide>

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- |                                                         |                                                                         |
|---------------------------------------------------------|-------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                 | <input type="checkbox"/> Poor learning outcomes                         |
| <input type="checkbox"/> Issues of equity and inclusion | <input type="checkbox"/> Low number of professionally trained educators |
| <input type="checkbox"/> Poor quality programmes        | <input type="checkbox"/> Lack of support to families                    |
| <input type="checkbox"/> Other:                         |                                                                         |
-

None

- Please elaborate. Brief quantitative information may be added.

|  |
|--|
|  |
|--|

## 2.2 Primary and secondary education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”*

### Primary education

- Please provide the age of enrolment and duration of primary education:

|                                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------------|
| Enrolment is at 7 years-of-age; compulsory until the completion of primary and lower-secondary education (9 grades) or until 17 years-of-age. |
|-----------------------------------------------------------------------------------------------------------------------------------------------|

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

|                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| All persons residing in Estonia have the right and obligation to acquire primary education (grades 1-9). Primary education is free of charge at municipal and state owned schools. A child is at the age of compulsory school attendance if he or she is seven years old by the 1st of October of the current year. The obligation to attend schools lasts until primary education is acquired or until a student attains 17 years of age. |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                                                                                                                                                                                                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="https://www.hm.ee/en/education-research-and-youth-affairs/general-education/general-education-estonia">https://www.hm.ee/en/education-research-and-youth-affairs/general-education/general-education-estonia</a> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|                                                |
|------------------------------------------------|
| Basic Schools and Upper Secondary Schools Act: |
|------------------------------------------------|

|                                                                                                                                                         |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="https://www.riigiteataja.ee/en/eli/ee/521062016007/consolide/current">https://www.riigiteataja.ee/en/eli/ee/521062016007/consolide/current</a> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|

- What challenges were encountered in realizing primary education?

- |                                                         |                                                                        |
|---------------------------------------------------------|------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                 | <input type="checkbox"/> Poor learning outcomes in:                    |
| <input type="checkbox"/> Issues of equity and inclusion | <input type="checkbox"/> Foundation literacy                           |
| <input type="checkbox"/> High dropout rates             | <input type="checkbox"/> Numeracy                                      |
| <input type="checkbox"/> Poor quality programmes        | <input type="checkbox"/> Social and emotional learning                 |
| <input checked="" type="checkbox"/> Other:              | <input type="checkbox"/> Others                                        |
|                                                         | <input type="checkbox"/> Disparity in learning outcomes                |
|                                                         | <input type="checkbox"/> Low number of professionally trained teachers |

Consolidation of school network due to demographic changes.

- Please elaborate. Brief quantitative information may be added.

### **Secondary education**

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Lower secondary education is part of compulsory education until the completion of 9 years of schooling or until 17 years-of-age.

- Please provide the age of enrolment and duration of upper secondary education:

Upper secondary education is not compulsory, and follows the completion of lower secondary education. Upper secondary education programme is 3 years.

Upper secondary vocational education is not compulsory, and follows the completion of lower secondary education. Upper secondary vocational education programme

- Is lower and upper secondary education compulsory and free of charge?

- |                                                                                  |
|----------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Lower secondary education is compulsory.     |
| <input type="checkbox"/> Lower secondary education is <b>not</b> compulsory.     |
| <input checked="" type="checkbox"/> Lower secondary education is free of charge. |
| <input type="checkbox"/> Lower secondary education is <b>not</b> free of charge. |

- ☐ Upper secondary education is compulsory.
- ☒ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Secondary education as well as vocational secondary education are available free of charge.

One of the main goals of the Estonian Education Strategy 2021-2035 is to ensure that learning opportunities are diverse and accessible and the education system enables smooth transitions between levels and types of education. The Strategy puts the main emphasis on the reorganisation of the education school network to bring the school network in line with demographic changes and ensure the uniform availability of high-quality education everywhere in Estonia. This approach includes ensuring that children receive primary, lower and upper secondary education as close to home as possible; concentrating upper secondary education in urban or regional centres, with the state taking greater responsibility for the provision of secondary education places, while continuing to cooperate with local authorities and private secondary school operators; and supporting the integration of general and vocational upper secondary education.

The planned cost of the programme for 2021-2024 is approx. 2,2 billion Euro. The amount of financing is adjusted annually during the discussion of the national budget strategy and national budget.

Actions:

1) Ensuring an inclusive and sustainable network and infrastructure of educational institutions providing high-quality education to ensure access to education for different target groups and a learning environment that supports contemporary approaches to learning and teaching

The most important activities will include the continued optimization of the school network, developing the regional education centres and the development and implementation of the concepts of centres of vocational development.

To this aim, infrastructure will be brought into line with the contemporary approach to teaching and learning, taking into account the principles of spatial quality, including timeliness and relevance, accessibility, adaptability, sustainability and efficiency, environmental friendliness, safety, health; the division of responsibilities at secondary level will be clarified, cooperation between national and local authorities in consolidating and organising secondary education strengthened by the state taking more responsibility; the concept of regional education centres will be developed and implemented to create new forms of learning and new opportunities for linking general, vocational and higher education and non-formal learning, including youth work, and for facilitating transitions.

2) Ensuring flexible learning opportunities, accessibility of high-quality education and supported learning

To this aim, the development of a common standard for secondary education in order to integrate general and vocational upper secondary education will be undertaken, greater recognition of non-formal and informal learning in formal education will be supported; the inclusion of opportunities to pursue education in smaller modules (micro-credentials, learning bites) will be supported and developing a holistic approach to support learners with special educational needs will be supported.

Vocational Educational Institutions Act:

<https://www.riigiteataja.ee/en/eli/510052024002/consolide>

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

*For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.*

☐ Yes

☒ No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

According to the Employment Contracts Act § 7. Entry into employment contract with minor:

(1) An employer must not enter into an employment contract with a minor under 15 years of age or a minor subject to the obligation to attend school, or allow such a minor to work, except in the cases provided in subsection 4 of this section.

(2) An employer must not enter into an employment contract with a minor or allow a minor to work if the work:

1) is beyond the minor's physical or psychological capacity;

2) is likely to harm the moral development of the minor;

3) involves risks which the minor cannot recognise or avoid owing to lack of experience or training;

4) is likely to hinder the minor's social development or the acquisition of their education;



5) is likely to harm the minor's health due to the nature of the work or the working environment.

(3) The list of the work and hazards specified in clause 5 of subsection 2 of this section are established by a regulation of the Government of the Republic.

(4) An employer may enter into an employment contract with a minor of 13–14 years of age or a minor of 15–16 years of age subject to the obligation to attend school and allow them to work if the duties are simple and do not require any major physical or mental effort (light work). Minors of 7–12 years of age are allowed to do light work in the field of culture, art, sports or advertising.

(4<sup>1</sup>) An employer may enter into an employment contract with a minor of 13 years of age for the performance of the following work:

- 1) agricultural work;
- 2) ancillary work performed in trade or service establishments;
- 3) ancillary work performed in catering or accommodation establishments;
- 4) other work that meets the requirements provided in subsections 2 and 4 of this section.

#### § 8. Consent for employment of minor

(1) An expression of will made by a minor for entry into an employment contract without the prior consent of a legal representative is void, unless the legal representative subsequently approves the expression of will.

(2) The legal representative of a minor may not consent to the employment during the school holiday of a minor subject to the obligation to attend school for more than a half of each term of the school holiday.

(3) An employer may not allow a minor of 7–12 years of age to work before ten working days have passed since the entry of the minor in the employment register provided in § 251 of the Taxation Act.

(4) When entering an employee of 7–12 years of age in the employment register, the employer must additionally present to the Labour Inspectorate through the working environment database or in a form reproducible in writing information about the consent of a legal representative of the minor, the working conditions and duties of the minor and the minor's obligation to attend school.

(5) After having received the information provided in subsections 3 and 4 of this section, the labour inspector is required to verify that the work is not prohibited for a

minor, the minor's working conditions are in accordance with the requirements provided by law and the minor wants to work.

(6) The labour inspector's consent for allowing a minor of 7–12 years of age to work is presumed if the term provided in subsection 3 of this section has passed and the labour inspector has not refused to grant consent.

(7) If, in ascertaining the will of a minor of 7–12 years of age, the labour inspector has reasonable doubt that the minor is not expressing their true will in the presence of the legal representative, the labour inspector must ascertain the will of the minor in the presence of the minor and a local child protection official.

(8) An employment contract which has been entered into with a minor of 7–12 years of age is void if as a result of verifying the circumstances provided in subsection 4 of this section the labour inspector refuses to grant consent.

(9) An employer is prohibited from allowing a minor to work without the consent or approval of a legal representative.

#### § 43. Working time

(4<sup>1</sup>) If a minor who is 14 years of age and studying in a vocational educational institution is completing work practice for the purposes of the Vocational Educational Institutions Act, their working time may be 7 hours a day and 35 hours over a period of seven days. Under the same conditions, the working time of a minor who is at least 15 years of age may be 8 hours a day and 40 hours over a period of seven days.

(42) If a minor who is subject to the obligation to attend school performs light work in the field of culture, art, sports or advertising, their working time during a quarter of an academic year outside of school hours may be 3 hours a day and 12 hours over a period of seven days.

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/523052024002/consolide>

- What challenges were encountered in realizing secondary education?

- |                                                         |                                                                        |
|---------------------------------------------------------|------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                 | <input type="checkbox"/> Poor learning outcomes                        |
| <input type="checkbox"/> Issues of equity and inclusion | <input type="checkbox"/> Low readiness of primary graduates            |
| <input type="checkbox"/> High dropout rates             | <input type="checkbox"/> Low number of professionally trained teachers |
| <input type="checkbox"/> Poor quality programmes        |                                                                        |
| <input type="checkbox"/> Other:                         |                                                                        |

Consolidation of school network due to demographic changes.

- Please elaborate. Brief quantitative information may be added.

## 2.3 Higher education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3<sup>37</sup>, and target 4.4<sup>38</sup>. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.*

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

In Estonia the admission to universities are mostly merit based. A higher education institution may introduce further admission requirements, which may differ between universities. Those can be minimum scores of national exams, entrance examination or secondary education final grades, etc.

<sup>37</sup> Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

<sup>38</sup> Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

The access requirement on the first cycle of higher education is secondary education (general secondary education or vocational secondary education) or a corresponding foreign qualification.

Since the 2012/2013 academic year, higher education is free of charge in Estonia for those studying full-time and in Estonian language.

<https://www.hm.ee/en/education-research-and-youth-affairs/general-education/higher-education>

Estonia has implemented measures to simplify access to higher education to ensure that every capable person enroll for a higher education institution. Those students who are acquiring higher education can apply for a student loan, need-based study allowance, or need-based special allowance to fund their studies or apply for various different scholarships. The purpose of the study allowances is to support students in covering the additional expenses which arise from acquiring their higher education. Students are not entitled to the study allowance during academic leave or during a period of receiving a study allowance from the government of a foreign country, an international or intergovernmental organisation, or from the representation of a cooperation programme.

Scholarship based on study results is for Bachelor and Master level students with very good academic achievements. The amount of the scholarship is 100 EUR per month. The scholarship is given out for one semester (five months).

<https://www.riigiteataja.ee/akt/125092020002>

Need-based study allowance (150€-440€ per month) can be applied by full-time students who complete at least 75% of their curriculum and whose estimated monthly income per family member is up to 756,38 euros. The average income of the family is calculated based on the amount of their income subject to income tax in the calendar year before the academic year in which the study allowance is applied for. Those students who missed out on need-based study support because their previous income exceeded the established limit for receiving support, can apply for a need-based special allowance (135€ per month) in case their income has recently decreased significantly. <https://www.riigiteataja.ee/akt/119122023019>

The amount of the stipend supporting the acquisition of higher education for students who have been in foster care or lived in a guardian's family is 160 euros per month. <https://www.riigiteataja.ee/akt/115092023002>

Additionally, grants for students with special needs (disability) are implemented. The amount of the grant (60€-510€ per month) depends on the type of the disability. The amount of the scholarship for students with special needs is

1) 510 euros per month for a student with a hearing loss that corresponds to a profound or severe disability;

- 2) 148 euros per month for a student with a mobility or visual impairment which corresponds to a profound or severe disability;
- 3) 80 euros per month for a student with a profound or severe disability other than those mentioned in clauses 1) and 2);
- 4) 325 euros per month for a student with a hearing disability which corresponds to a moderate disability;
- 5) 68 euros per month for a student with a mobility or visual impairment which corresponds to a moderate disability;
- 6) 60 euros per month for a student with a moderate disability other than those mentioned in clauses 4) and 5).

Also some special cases are introduced like students with moderate, severe or profound disability, are entitled to complete the curriculum during the period of academic leave. <https://www.harno.ee/erivajadusega-uliopilaste-stipendium>

In addition students can apply for a professional scholarship. The purpose of the professional scholarship is to motivate students to study full-time in priority areas. The amount of the professional scholarship is 160 euros per month. The size of the professional scholarship for priority informatics and information technology study programs is 160–300 euros per month. <https://www.riigiteataja.ee/akt/115092023002>

Doctoral students are guaranteed the position of junior researchers, which would ensure them the income and social guarantees related to the employment contract. The state finances the jobs of junior researchers to the extent of the Estonian average salary.

<https://www.hm.ee/sites/default/files/documents/2024-03/Teaduss%C3%BCsteemi%20programm%202024-2027.pdf>

Students are also able to apply for a study loan. A study loan is a state-guaranteed long-term loan to students who are Estonian citizens or are staying in Estonia on the basis of a long-term residence permit or permanent right of residence. The maximum rate for study loan secured by the state per applicant per academic year will be established by the Government of the Republic of Estonia annually by 1 July. A loan may be applied for at any time during the academic year, from mid-September to 1st of June and it is available from all major commercial banks. In 2024, the maximum amount of the student loan is 3,000 euros. The eligibility criteria and conditions are regulated by the Study Allowances and Study Loans Act: <https://www.riigiteataja.ee/en/eli/ee/515112013011/consolide/current>

- What challenges were encountered in realizing higher education?

- ☐ Limited access
  - ☐ Issues of equity and inclusion
  - ☐ Poor quality programmes
  - ☐ Low number of professionally trained professors
-

☐ Poor learning outcomes

☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

☐ Other:

The tertiary education attainment gap (more women in higher education)

- Please elaborate. Brief quantitative information may be added.

## 2.4 Adult education and alternative learning

*For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”*

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes - *not applicable, the literacy rate in Estonia is nearly 100%.*
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Adult education is divided into formal education, non-formal work-related training and retraining, and informal education  
<https://www.hm.ee/en/education-research-and-youth-affairs/general-education/adult-education#legislation>

Flexible study opportunities have been created for adult learners: distance learning and evening courses, external study and part-time study, as well as participation in various courses.

Formal education acquired within the adult education system allows adults to acquire basic and general secondary education at adult upper secondary schools through distance learning, evening courses or external study. Adult upper secondary schools are flexible in preparing individual curricula and adapt the study process to the needs of the students, allowing them to study single subjects, for example.

Education is free of charge from basic to higher education. Until now, vocational education is free for adults - the proportion of adult learners in vocational education is 25%.

In addition to formal education, institutions of vocational education and higher education are providing increasingly more continuing education courses and retraining courses. These courses allow adults to acquire and improve their professional, occupational and speciality knowledge, skills and experience as well as to retrain themselves. Some training is linked to people's interests and hobbies.

There are about 400 000 learners taking part in trainings (courses) every year.  
<https://www.haridussilm.ee/ee/taiskasvanuharidus/taiskasvanuharidus/taienduskoolitused>

There are officially provided about 85 000 different courses per year. Training courses allow students to develop their creativity, talents and social skills also. Such training is usually linked to people's interests and hobbies. Although this training is mainly provided by informal education centres, it is also available at many other training institutions.

Financing of training courses:

- Estonian Unemployment Insurance Fund is a major contributor to upskilling adults skills by financing courses for the unemployed, but working people also have the opportunity to acquire new skills with their support. There are also learning accounts offered for the unemployed.
- The state finances teachers' training (also with the support of the European Union Social Fund).
- Free trainings for working people (with the support of the Social Fund of the European Union). The ministry is submitting a request for the provision of state-commissioned continuing education. The main target group is people with a low level of education and no professional education or people whose professional skills are outdated.
- Employers are financing (job-related trainings).
- People pay themselves.

Official trainings end with the assessment of the learning outcomes and, upon their acquisition, with the issuance of a certificate. The unemployed are also supported in applying for a professional certificate.

Priority target groups in Estonia:

- Adults with lower levels of education, early school leavers  
<https://www.haridussilm.ee/ee/taiskasvanuharidus/taiskasvanuharidus/haridustase-ja-osalus-oppes;>
- Adults without professional qualification;
- Adults whose professional skills need to be updated;
- Adults whose digital skills need to be updated.

Support systems:

- Recognition of prior learning and work experience  
[https://www.hm.ee/en/education-research-and-youth-affairs/recognition-prior-learning-and-work-experience.](https://www.hm.ee/en/education-research-and-youth-affairs/recognition-prior-learning-and-work-experience)
- Career counselling offered by the Unemployment Office for unemployed and employed adults and is free for everyone.  
<https://www.tootukassa.ee/en/karjaarikujundajale/karjaarikujundamine>
- Study leave - up to 30 calendar days per year;  
in order to complete one's formal education, one can apply for a supplemental study leave (15 days); when participating in work-related training or formal education, the student will also be paid the average wage for 20 days; during supplemental study leave, the student will be paid the minimum wage. <https://www.riigiteataja.ee/en/eli/523052019003/consolide>
- A taxpayer may deduct from his or her taxable income the training expenses paid during the calendar year which incurred to this taxpayer. The expenditures made by private persons are not subject to income tax, if the curricula is based on occupational standard and for Estonian language class. Training expenses may be deducted from income if the expenses were paid for studying in:
  - a state or local government educational establishment;
  - a university in public law;
  - a private school which has got in the framework of the study programme an activity licence or a registration entry in the Estonian Education Information System (EHIS) or the right to provide a higher education or
  - a foreign educational establishment of equal status with the aforementioned, or for studying on fee-charging courses organised by such educational establishments.  
<https://www.emta.ee/en/private-client/taxes-and-payment/tax-incentives/training-expenses>
- The state supports the professional training of adult educators and the development of the quality of educational institutions.



<https://eurydice.eacea.ec.europa.eu/national-education-systems/estonia/adult-education-and-training-funding>

The acquisition of basic and general secondary education through evening courses, distance learning and external study is free for the adult learner.

In the field of vocational education, many flexible forms of vocational training and forms of study have been implemented for adult learners, with part-time study provided for the learners free of charge.

<https://www.hm.ee/en/education-research-and-youth-affairs/general-education/adult-education>

Part-time study is usually not free for students in the field of higher education. In order to be able to obtain a state-funded study place, the learner must apply for a full-time study programme. Free part-time higher education is provided in nationally prioritised fields, e.g. for teachers without a higher education.

#### **Adult Education Act**

<https://www.riigiteataja.ee/en/eli/ee/529062015007/consolide/current>

- What challenges were encountered in realizing adult learning and education?

- |                                                         |                                                                                    |
|---------------------------------------------------------|------------------------------------------------------------------------------------|
| <input type="checkbox"/> Limited access                 | <input type="checkbox"/> Limited funding                                           |
| <input type="checkbox"/> Issues of equity and inclusion | <input type="checkbox"/> Poor learning outcomes                                    |
| <input type="checkbox"/> Poor quality programmes        | <input checked="" type="checkbox"/> Low number of professionally trained educators |
| <input checked="" type="checkbox"/> Other:              |                                                                                    |

The challenge is the inclusion of priority target groups in education, both in formal and nonformal education.

- Please elaborate. Brief quantitative information may be added.

The share of adults aged 25-64 with basic or general secondary education (without professional and vocational education) is decreasing, but remains a challenge. Approx. 25% of the adult population have no professional education and/or have a lower level of general secondary education.

### **3. Quality education provision and learning environment**

*For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.*

### 3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

|  |
|--|
|  |
|--|

- Please elaborate on each of the measures taken:

*You may include information on policies, protocols or codes of conduct.*

For each level of education (pre-school, basic, secondary and higher education), the state establishes requirements, called national standards of education. These are set out in national curricula which determine general objectives of the respective educational level, required content, estimated length of study period, required knowledge, skills and experience. The organisation and conduct of inspection for formal education is regulated by the Pre-School Childcare Institutions Act, the Basic Schools and Upper Secondary Schools Act, the Vocational Education Institutions Act, the Private Schools Act, the Universities Act and the Institutions of Professional Higher Education Act. The main objective of the inspection is to contribute to acquiring quality education and to ensure the efficiency and lawfulness of education and schooling activities. In Estonia there is no independent inspectorate, thus no complex, full-scale inspection is conducted. The Ministry of Education and Research establishes the priorities of inspection for each school year and according to that the county governors carry out thematic inspections (the sample includes approx. 10% of educational institutions. The Ministry carries out inspection in individual matters, for example, when an educational institution has applied for an education licence or in case of problems (complaints). In 2006, the Ministry of Education and Research established a mandatory requirement for internal evaluation in pre-primary institutions, general education institutions and vocational schools as well as changed the organisation of state inspection: the role of internal evaluation has increased and the role of the state inspection has decreased. The information received is used for the dissemination of the best practice in educational institutions; for the training of managers and teachers of educational institutions; for the introduction of necessary changes to legislation; and for making decisions concerning education policy. Additionally, the ministry would like to go over from thematic inspection to risk based inspection – it means to inspect schools only when there are problems.

The external evaluation of higher education is co-ordinated by the Department for Higher and Vocational Education Policy and Lifelong Learning, and the evaluation of research institutions handled by the Department for Research and Development Policy in the Ministry of Education and Research.

Preschool Child Care Institutions Act

<https://www.riigiteataja.ee/en/eli/ee/520122013003/consolide/current>

Basics Schools and Upper Secondary Schools Act

<https://www.riigiteataja.ee/en/eli/ee/VV/reg/524092014014/consolide>

Occupational qualification standards in vocational education:

<https://www.kutseregister.ee/en/standardid/viimati-kinnitatud-kutsestandardid/?>

(additionally also vocational education standard and national vocational curricula act as standards)

Standard on Higher Education:

<https://www.riigiteataja.ee/en/eli/ee/VV/reg/524092014013/consolide>

- What challenges were encountered in realizing quality education?

- |                                                                             |                                                                               |
|-----------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| <input type="checkbox"/> Non-supportive or inadequate learning environments | <input type="checkbox"/> Low quality educational infrastructure and materials |
| <input type="checkbox"/> Violence in schools                                | <input type="checkbox"/> Inadequate parental support to education             |
| <input type="checkbox"/> Cost of education                                  | <input type="checkbox"/> Long distances to schools                            |
| <input type="checkbox"/> Conflicts or crises                                |                                                                               |
| <input checked="" type="checkbox"/> Other:                                  |                                                                               |

Demographic changes and the need to consolidate the school network.

- Please elaborate. Brief quantitative information may be added.

### 3.2 Education personnel

*For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.*

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

One of the main goals of the Estonian Education Strategy 2021-2035 is to ensure that Estonia has competent and motivated teachers and school leaders, a diverse learning environment and a learner-centred approach to learning and teaching.

Societal changes, labour market shifts and educational advances are broadening the expectations of teachers. In the future, teachers will increasingly take on the role of supporters and mentors, as well as educators of values, consciously shaping learners' attitudes and promoting self-directed learning. Universities play a crucial role in training the next generation of educators and in promoting the research, development and innovation necessary for the growth of education. In order to foster an effective learning environment, educational institutions need to establish a value-based, democratic and inclusive culture that fosters self-management and collaborative skills, while fostering a love of learning in all participants. The importance of the joy of learning and the well-being of both students and teachers is now more widely recognised. In addition, the role of the education system in fostering values, scientific reasoning and critical thinking is becoming more important.

The planned cost of the programme for 2021-2024 is approx. 2,2 billion Euro. The amount of financing is adjusted annually during the discussion of the national budget strategy and national budget.

Actions:

- 1) The principles of contemporary approach to learning and teaching are implemented at all levels and in all type of education in order to ensure that the process and content of learning support the development of self-directed learners, empowering both learners and teachers, including vocational teachers, university teachers and trainers

For this end ....

- 2) Ensuring that the next generation of qualified school and university teachers, educators, and support specialists have flexible opportunities to

enter the profession, as well as providing support for new teachers and professional development opportunities throughout the career

For this end

- 3) Ensuring a new generation of heads of schools, supporting their professional development, and developing and implementing an assessment system for heads of schools in order to promote educational innovation and create a safe learning environment that supports the physical and mental health and wellbeing of all.

Additionally, a teacher action plan was adopted in 2022 and is being implemented to improve the working conditions, training and career progression of teachers; it also covers support specialists, school leaders and school managers. It focuses on developing leadership quality and organisational culture as key to improving the reputation of the teaching profession, bringing new teachers into schools and giving them job security.

- As part of the action plan, over 400 new study places for teacher and support specialist students have been opened at Tallinn and Tartu universities in 2023.
- Since 2023-2024 a monthly scholarship of EUR 400 has been established for students of teacher training and support specialist programmes.
- A flexible pathway into the profession (used by many unqualified teachers) is to apply for the teacher profession through the national occupational qualifications system or acquiring micro-credits.
- A new career model for teachers is also being developed.

<https://op.europa.eu/webpub/eac/education-and-training-monitor-2023/en/country-reports/estonia.html>

The Development Plan for the Education Sector 2021-2035 has set the goal that the average salary of general education and vocational education teachers must be 120 percent of the Estonian average salary, and the salary of kindergarten teachers must be 100 percent of the Estonian average salary.

In 2024, the calculated average salary of teachers increased by 6.6% to 2184 euros. The minimum gross salary of teachers in Ida-Viru County, with the appropriate language qualification, is 1.5 times higher, i.e., 2730 euros, to which an additional 20% differentiation component of 364 euros is added. In total, the higher calculated salary of teachers in Ida-Viru County can increase to 3094 euros. In January 2023, the Minister of Education and Research invited stakeholders to start negotiations to agree on a long-term plan for the salary growth of teachers for the years 2025-2027. The negotiations will cover the career model, school network, and teacher salary support. By the beginning of 2024, the ministry developed a teacher career model with workload calculations and a salary scale.

Students studying to become teachers can apply for the teacher training scholarship. The aim of the scholarship is to value learning as a teacher, to recognise the teacher's profession in Estonian society, and thereby to increase the number of candidates for teacher training and those who acquire the teacher's profession.

Scholarship is funded by the Estonian government. Each year the scholarship will be paid to hundred students. Scholarship is 160 euros per month and is allocated twice a year for 5 months at a time: for autumn semester and spring semester. <https://harno.ee/en/scholarships-and-grants/scholarships-studying-and-working-estonia/teacher-training-programme>

For those students who started their studies in teacher training or support specialist training curricula from the 2023/2024 academic year, the amount of the scholarship is 400 euros when studying full-time. <https://www.hm.ee/uudised/opetajaks-oppijad-hakkavad-saama-suuremat-stipendiumi>

Training and development activities: <https://www.hm.ee/en/education-research-and-youth-affairs/teacher-policy>

- What challenges were encountered in the education personnel?

- |                                                                                  |                                                                               |
|----------------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| <input type="checkbox"/> Shortages of teaching staff                             | <input type="checkbox"/> Low quality educational infrastructure and materials |
| <input type="checkbox"/> Lack of qualified, trained and motivated teaching staff | <input type="checkbox"/> High student – teacher ratio                         |
| <input type="checkbox"/> Lack of training centres                                |                                                                               |
| <input checked="" type="checkbox"/> Other:                                       |                                                                               |

Retaining the personnel.

- Please elaborate. Brief quantitative information may be added.

The average age of Estonia's teaching personnel is the highest among the OECD countries (nearly 50 yo); an increasing trend in teachers' shortage, especially in STEM.

### 3.3 Respect for human rights and fundamental freedoms

*For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.<sup>39</sup> Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.*

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

In 2022, adjustments were made to the national curriculum for primary and upper secondary education, with a focus on fostering skills development and striving to improve students' overall contentment with their educational experience. The updated curriculum that was put in force in 2023 March provides teachers with increased flexibility in how they approach learning content and conceptualise assessment, incorporates additional optional courses in upper secondary education to better align teaching with the diverse needs and interests of students. These modifications are intended to enhance subject learning and foster general competencies, including the ability to learn, digital literacy, 21<sup>st</sup> Century skills and communication skills, cultural awareness, and SEL skills and values. To facilitate the integration of students with diverse cultural backgrounds, mandatory lessons for Estonian as a second language have been expanded on a weekly basis. Furthermore, adult learners now have the choice to either resume their unfinished studies up to the basic education level or opt for a simplified course of study.

As an accompanying material for the implementation of the national curricula, descriptions of the study process have been worked out in Estonia. These descriptions are there for every subject and the aim of these is to show how to integrate and teach about cross-curricular topics, develop core competencies and integrate different subjects. The descriptions of the study process are currently being complemented with the topics of human rights and gender equality.

Pursuant to the Estonian Basic Schools and Upper Secondary Schools Act, human rights are core values of general education. Schools shall build up a school culture respecting democratic and human rights values. Within the learning process, human rights are connected with the core competences (for example value and cultural

competence; social and civic competence; self-awareness competence; communication competence) described in the general part of the national curricula.

Additionally, human rights education is connected with the Global Citizen Competency Model, which the Estonian Centre for International Development commissioned. The model aims to support the inclusion of a global dimension including human rights in the competencies outlined in the curriculum and to link them to the learning outcomes of different subjects. The model defines global education as a shared knowledge of how global issues affect the daily lives of individuals, communities and societies, and how each of us can have an impact on the world. It is a learning process that enables us to move from awareness to personal responsibility and informed action, and from there to international cooperation and sustainable human development. The model was published in November 2022 and has been used in both curriculum development and school development projects.

### 3.4 Non-state actors in education

*For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision<sup>40</sup>.*

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation<sup>41</sup> explicitly apply to non-state educational institutions. Please specify:

The curriculum of a private school must comply with the national curriculum for pre-school child care institutions, which state that:

Based on the overall goal, learning and educational activities support the child's physical, mental, social and emotional development, as a result of which the child develops a complete and positive self-image, understanding of the surrounding environment, ethical behaviour and initiative, primary work habits, physical activity and understanding of the importance of maintaining health, and develops play, learning, social and personal skills.

Principles of conducting learning and educational activities must include: valuing humane and democratic relations; valuing Estonian cultural traditions and considering the peculiarities of other cultures.

When planning and carrying out educational and educational activities, the specific characteristics of children are taken into account: abilities, linguistic and cultural background, age, gender, health status, etc. Educators are the leaders of children's development and the creators of an environment that supports development.

A child with special needs within the meaning of the regulation is a child whose developmental needs due to his abilities, state of health, linguistic and cultural background and personality characteristics require changes or adaptations to be made in the child's

<sup>40</sup> Private, faith-based, NGOs, community actors.

<sup>41</sup> See: Article/Paragraph 1(1).



growing environment (play and learning equipment, rooms, teaching and upbringing methods, etc.) or in the group's action plan.

The children's institution supports families with different linguistic and cultural backgrounds in introducing the child to their own language and culture and valuing the Estonian language and culture. A child whose home language is not Estonian is guaranteed Estonian language learning.

As a result of educational and educational activities, a 6–7-year-old child:

tries to understand other people's feelings and consider them in his behaviour and conversation; wants and dares to communicate - is interested in relationships and is interested in others; cares about other people, provides help and asks for it himself if necessary; participates in the formation of group rules; can consider and cooperate with others; creates friendships; distinguishes between good and bad behaviour; understands that people can be different; follows the agreed rules and generally accepted norms of behaviour.

<https://www.riigiteataja.ee/akt/13351772>

In the event of a private nursery school and a basic school operating as one institution, the curriculum of a private school must comply with the national curriculum for pre-school child care institutions on the part of the nursery school and with the competencies acquired in stages of study and the learning outcomes of subjects established in the national curriculum on the basis of the Basic Schools and Upper Secondary Schools Act on the part of the basic school. The Basic Schools and Upper Secondary Schools Act also applies in the event of a private basic school and an upper secondary school.

According to the Basic Schools and Upper Secondary Schools Act, the fundamental values of general education schools consist of “The values arising from the ethical principles specified in the Constitution of the Republic of Estonia, the Universal Declaration of Human Rights, the Convention on the Rights of the Child and the fundamental documents of the European Union are considered important,” (§ 3., point 2). “Upon organisation of studies, the state, owners of schools and schools adhere to the following principles: 1) general education of good quality adheres to the principles of inclusive education and is equally available to all persons regardless of their social and economic background, nationality, gender, place of residence or special educational needs; 2) there are no curricula-based impediments to the movement of students from one stage of study, form of study or level of education to another,” (§ 6, point 1 and 2).

Thus, pursuant to the Estonian Basic Schools and Upper Secondary Schools Act, human rights are core values of general education. Schools shall build up a school culture respecting democratic and human rights values. Within the learning process, human rights are connected with the core competences (for example value and cultural competence; social and civic competence; self-awareness competence; communication competence) described in the general part of the national curricula.

<https://www.riigiteataja.ee/akt/126042024009>

According to the Equal Treatment Act, § 2: (1) “Discrimination of persons on grounds of nationality (ethnic origin), race or colour is prohibited upon:

3) access to vocational guidance, vocational training, advanced vocational training and retraining, practical work experience;

6) education;”

whereas § 2: (2) determines that “Discrimination of persons on grounds of religion or other beliefs, age, disability or sexual orientation is prohibited upon:

3) access to vocational guidance, vocational training, advanced vocational training and retraining, practical work experience;”

§13 of the Equal Treatment Act states that “Educational and research institutions and other entities and persons organising training shall, upon determination of the content of studies and organisation of studies, take account of the need to promote the principle of equal treatment.” - <https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/507032022003/consolide>

According to the Youth Work Act, youth work proceeds from the principle of equal treatment, tolerance and partnership.

The Act applies to non-profit youth work associations; unions of non-profit associations or a foundation the objective of which is the integration of youth workers, youth work agencies or other exercisers and organisers of youth work and representation of their interests; a permanent youth camp or a youth project camp, which is entered in the commercial register, the non-profit associations and foundations register or the register of religious associations, or a camp of an agency entered in state register of state and local government agencies, or a camp of a legal person in public law; a youth association, which is a non-profit association at least two thirds of the members of which are young people and the objective of which is the organisation and performance of youth work; a union of youth associations is a non-profit association the members of which are youth associations.

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/517072020007/consolide>

□ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

According to the Private Schools Act (pre-school, basic or secondary education), the statutes of the school must include the rights and obligations of students.

The curriculum of a private school must comply:

1) in the event of a pre-school child care institution, with the national curriculum for pre-school child care institutions;

2) in the event of a nursery school and a basic school operating as one institution, with the national curriculum for pre-school child care institutions on the part of the nursery school and with the competencies acquired in stages of study and the learning outcomes of

subjects established in the national curriculum on the basis of the Basic Schools and Upper Secondary Schools Act on the part of the basic school;

3) in the event of a basic school and an upper secondary school, with the competencies of the level of education and the learning outcomes of subjects established in the national curriculum based on the Basic Schools and Upper Secondary Schools Act;

4) in the event of a vocational educational institution, with the vocational education standard and the national curriculum for the vocation or profession or, in the event of a joint curriculum, also with the requirements of § 33 of the Vocational Educational Institutions Act.

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/503062019009/consolide>

The Youth Work Act applies both to state and private actors.

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/517072020007/consolide>

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

According to the Private School Act, “Confessional religious education may be provided in a private school on the conditions and in accordance with the procedure established by the school board. Attending confessional religious studies is voluntary.”

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/503062019009/consolide>

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees

☒ School closures

☐ Other

- Please elaborate:

<https://www.riigiteataja.ee/en/eli/ee/Riigikogu/act/503062019009/consolide>

- What challenges were encountered in non-state education provision?

- |                                                                               |                                                                             |
|-------------------------------------------------------------------------------|-----------------------------------------------------------------------------|
| <input type="checkbox"/> Low quality educational infrastructure and materials | <input type="checkbox"/> Issues in terms of equity and inclusion            |
| <input type="checkbox"/> Low number of professionally trained teachers        | <input type="checkbox"/> Weak government regulatory and monitoring capacity |
| <input type="checkbox"/> High student – teacher ratio                         |                                                                             |
| <input type="checkbox"/> Other:                                               |                                                                             |

- Please elaborate. Brief quantitative information may be added.

### 3.5 Digital education

*Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion<sup>42</sup>.*

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

In Estonia, the legal framework provides for the use of digital technology in education through several key measures. In the National Curriculum, digital competence is listed as one of the eight key competencies that schools in Estonia focus on. Estonia's Education Strategy 2021-2035 prioritises digital inclusion, digital literacy, and the integration of digital skills across all education levels. The strategy also emphasises the adoption of digital pedagogy and promotes innovation driven by digital technologies.

<sup>42</sup> Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

[https://www.hm.ee/sites/default/files/documents/2022-10/haridusvaldkonna\\_arengukava\\_2035\\_kinnittaud\\_vv\\_eng\\_0.pdf](https://www.hm.ee/sites/default/files/documents/2022-10/haridusvaldkonna_arengukava_2035_kinnittaud_vv_eng_0.pdf)

Digital Agenda 2030 outlines the country's vision and action plans for harnessing digital technologies to drive future development. It underscores the integration of digital skills as a natural component of the curriculum across all educational levels. <https://www.mkm.ee/digiriik-ja-uhenduvus/digihiskonna-arengukava-2030>

- ☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☒ Measures to remove barriers to accessing digital content<sup>43</sup>, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☐ ☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

To ensure that schools can administer electronic tests in basic subjects and, in the future, electronic examinations at the end of lower secondary and upper secondary school, the state provides essential technological resources for schools through various measures. Local governments are responsible for maintaining and updating this technology, while granting schools the autonomy to prioritize technological needs specific to their requirements. Additionally, the Education and Youth Board supports schools through innovation projects, facilitating the acquisition of tools that enhance the development of students' IT competencies.

- What challenges were encountered in digital education provision (check all that apply)?

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input type="checkbox"/> Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways</li> <li><input type="checkbox"/> Lack of equity and inclusion in digital learning solutions</li> <li><input type="checkbox"/> inadequate safety measures and IT</li> <li><input type="checkbox"/> support to respond to issues of child online safety or reduce cyber security risks</li> <li><input checked="" type="checkbox"/> Other:</li> </ul> | <ul style="list-style-type: none"> <li><input type="checkbox"/> Limited access to internet and/or electricity</li> <li><input type="checkbox"/> Limited access to hardware (devices, chargers, etc.)</li> <li><input type="checkbox"/> Difficulty in regulating the use of digital education solutions</li> <li><input type="checkbox"/> Difficulty in sustainably financing digital education solutions at national scale</li> <li><input type="checkbox"/> Lack of digital skills development for meaningful use of digital technology in teaching practice</li> <li><input type="checkbox"/> Disjointed or fragmented solutions that are not centrally systematized or regulated</li> </ul> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

Keeping up to date with rapid technological developments, including AI.

- Please elaborate. Brief quantitative information may be added.

#### 4 Strengthening governance systems

*For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).*

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. Please provide the link:

The annual report of the Ministry of Education and Research is made public on the website of the Ministry, both in Estonian and English.  
<https://www.hm.ee/en/ministry/statistics-and-analysis#annual-analyses>

- ☒ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

- ☑ The decision-making process for the allocation of resources to education is transparent.
- ☑ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☑ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

In terms of educational governance, one of the main challenges has been to continue to reorganise and optimise the school network to achieve inclusiveness and sustainability, so that all schools provide quality education. This is challenging due to changing enrolment and uneven distribution of pupils. The number of students in general education schools has increased moderately since the 2014/15 school year, reaching almost 12,500 this year (+8%). The increase is due to higher birth rates and immigration, including the arrival of Ukrainian war refugees.

In addition, new state secondary schools have been opened in Rakvere and Saue, as well as the Tallinn Music and Ballet School MUBA. The new state gymnasium in Mustamäe will open in 2023. The transfer of schools from municipalities to the state will continue, the state is also supporting investment in municipal schools. Lastly, the state has taken over the organisation of adult education in some smaller counties, providing general adult education in vocational schools and state upper secondary schools, improving learning conditions and the use of resources.

*Data management: social dialogue*

The Estonian Education Quality Agency (HAKA, <https://haka.ee/en/organization/>) promotes the quality of education and monitors the quality of education on a needs basis. Additionally Haridussilm ([www.haridussilm.ee](http://www.haridussilm.ee)) is an information gateway to education data in Estonia, providing educators and the general public with access to education, research, language and youth data. It supports data-driven decisions and choices in education policy making, quality assessment and evidence-based school management. It visualises data by type of education: primary, general, vocational and higher education. It also presents a selection of thematic management tables, such as data on adult education and teachers, and topical education statistics, such as the number of Ukrainian refugees in the Estonian education system. From 2023, the environment will include an overview of the indicators in education strategy documents (development plans and programs), reports on the performance of educational institutions and an interactive performance chart. The schema provides a comprehensive overview of performance indicators describing progress towards the country's education goals and the performance of educational institutions.

- What challenges were encountered in terms of governance?

- |                                                                                                                                         |                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Budgetary constraints                                                                               | <input type="checkbox"/> Absence of supportive/<br>inconsistent/obsolete legal and policy<br>environment    |
| <input type="checkbox"/> Lack of involvement of relevant<br>stakeholders and lack of<br>cooperation/coordination at different<br>levels | <input type="checkbox"/> Lack or weakness of monitoring<br>systems – including the lack of<br>reliable data |
| <input type="checkbox"/> Poor dialogue with teachers' trade<br>unions                                                                   |                                                                                                             |
| <input type="checkbox"/> Other:                                                                                                         |                                                                                                             |

- Please elaborate. Brief quantitative information may be added.

With several educational reforms planned and underway, and with budgetary constraints, pressure is put on effective and efficient use of resources. Estonia's government's budgetary allocation to education is around 6% (and 4.8% according to OECD; this excludes investment to ECE), but the funds are held up by investments to the infrastructure.

### III. Methods used to draw the attention of the various authorities in the country to the instruments

*For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.*

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☒ Other:

The institution of the Gender Equality and Equal Treatment Commissioner has been created in Estonia in order to help people protect their rights and to avoid any form of discrimination. The Commissioner stands up for women and men having equal rights and opportunities in all aspects of public life. The Commissioner also endeavours to ensure that people in various minority groups are not treated unequally. The task of the Commissioner



is also to draw attention to any inequalities that may be present in society and to their causes. The Gender Equality Act and the Equal Treatment Act obligate among others also educational institutions to promote equal treatment more widely and they must organise the study and teaching according to the equal treatment principles, the principles are also reflected in the national curriculum.

Web page of the Gender Equality and Equal Treatment Commissioner:  
<https://www.volinik.ee/en.html>

Also there are several organisations and initiatives in Estonia created to develop the school culture: UNESCO Associated Schools Network, Kindergartens and schools free of bullying, network of Human Rights Friendly Schools, Bullying Free School (KiVa Anti-Bullying Program), NGO Mondo etc. Additionally, Recommendation against discrimination in Education (1960) has been translated into Estonian  
[https://unesco.ee/public/Soovitus\\_haridusliku\\_diskrimineerimise\\_tokestamise\\_kohta.pdf](https://unesco.ee/public/Soovitus_haridusliku_diskrimineerimise_tokestamise_kohta.pdf)